



File No.: EXP202208578

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 21, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against WATIUM, S.L. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202208578

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on July 5, 2022. The complaint is directed against WATIUM, S.L. with NIF B86459260 (hereinafter, W.S.L.). In their submission, the claimant states that, in April 2022, they received a phone call from someone identifying themselves as their electricity supplier (Endesa) who offered them more advantageous rates. Considering that the caller knew all their personal data and believing it was the same company providing that service, they agreed to the contract.

However, they later learned that what had occurred during that phone contract was a change of company without their consent to the respondent W.S.L., subsequently receiving calls and text messages from a debt collection entity demanding amounts owed in the name of the aforementioned supplier.

For evidentiary purposes, the claimant provides with their submission the contract with Endesa, copies of invoices from the latter, as well as two images of the text messages received from the debt collection entity demanding a pending debt with W.S.L. dated May 12 and June 21, 2022, respectively.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to W.S.L., so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 12, 2022, as evidenced by the acknowledgment of receipt in the file.

The respondent, after the extension of the deadline granted by this entity, submitted a written response to this authority on September 12, 2022, indicating the following information:

- It states that when a telemarketing service provider enters into a supply contract on behalf of W.S.L., it must provide the formalization of the sale so that this entity can verify that the contract has been carried out properly.
- It claims that the aforementioned service provider transfers the personal data of individuals to whom the products and services of the supplier will be offered to W.S.L. The telemarketing service provider would subsequently act as a data processor for W.S.L. for the purpose of offering its products and services, as well as contracting them, being able to carry out commercial actions only on those individuals who have given their consent to transfer their personal data to W.S.L. for that purpose.
- In this regard, it indicates that at the time of signing the service provision contract, the telemarketing service provider acquired the commitment to only transfer the personal data of those individuals who had given their consent for that purpose. Additionally, the service provider committed to properly inform the individuals in accordance with data protection regulations regarding the transfer of their data to W.S.L.
- Regarding the origin of the personal data of the claimant, it states that it cannot determine the source of the data obtained by the telemarketing service provider, as it obtained them as an independent data

controller from W.S.L.

- In relation to the contract made with the claimant, it states that "it has been verified that the contract was made informing that it was with MAS LUZ ENERGIA, a brand marketed by WATIUM."

- Finally, the respondent states that, due to the detection of incidents of different natures in the procedure for contracting its services, it has adopted as a measure the total suspension of the contracting procedure for its services until these issues are resolved.

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THIRD: On September 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

After reviewing the documentation provided by the claimant, the claim for various amounts by the company CLAIM LAW is evident. Specifically, the messages sent and provided as copies along with the document contained the following content:

"We are writing to you from CLAIM LAW, Lawyers representing WATIUM S.L. who has notified us that there are outstanding invoices for the amount of €161.22.

You can pay them via bank transfer to the account: ***ACCOUNT.1. Please indicate your identification number in the concept.

Once the payment has been made, please send us the proof to the following email:

reclamaciones@claimlawabogados.com"

"[...] we have not received any news from you regarding the outstanding invoices with WATIUM S.L. amounting to €161.22.

As we informed you earlier, in 2 days we will file the lawsuit that we attach in this communication for the amount of €161.22.

To immediately stop the judicial process, you can make the payment via transfer to account ***ACCOUNT.1."

Upon consulting the website of CLAIM LAW, Lawyers

(<https://www.claimlawabogados.com/aviso-legal>), the following information is confirmed within the legal notice:

Corporate name: SKYNET LEGAL, S.L (CLAIM LAW)

NIF: B-08266876

Address: Buenos Aires, 60 1º1ª 08036 Barcelona.

E-mail: info@claimlaw.es

Furthermore, information regarding the defendant W.S.L was sought in the Monitoriza service at <https://www.axesor.es/>, confirming it as active, with a registered and commercial address at RAMBLA DEL GARRAF, 76. SANT PERE DE RIBES 08812 (BARCELONA) and whose global parent company is VISALIA.

On December 7, 2022, information was requested from W.S.L. regarding the data of the claimant that is in its files, all possible contracts formalized with the same; in particular, the contract dated April 2022; as well as a copy of the contract between said supplier and the debt collection management company SKYNET for the processing of personal data.

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After a new request dated January 9, 2023, W.S.L sent its response on January 26, 2023, providing some of the documents requested by this entity.

Among them, the contract for the processing of data between W.S.L (data controller) and the debt collection company SKYNET LEGAL S.L. (data processor) stands out. The date of this contract is noted as June 7, 2022; however, it is signed on January 26, 2023, the same date on which the response to the information request from this authority was provided.

On January 30, 2023, the defendant sent a new document, attaching a new contract for the processing of data with the same company, with content identical to the document provided on January 26, 2023, but, in this case, signed on January 30, 2023.

As evidenced, the signatures of both contracts are subsequent to the information requests issued by this entity.

Furthermore, in the aforementioned response documents, W.S.L. states that it has no data of the claimant in its database, including contracts, indicating that this is due to the telemarketing service provider not having provided the formalized contract. As evidence of this circumstance, it provides a screenshot indicating that no data related to the search for the claimant's ID appears.

Regarding the copy of the contract between W.S.L and the telemarketing service provider that formalized the supply contract on its behalf, the defendant indicates that the telemarketing company is ALPHA 57, not providing a copy of any contract with that entity.

Consulting the basis of legitimacy on which W.S.L relies for the transfer of the claimant's personal data to the entity SKYNET, "we understand that WATIUM, S.L. has not proceeded to transfer the claimant's data, given that, as evidenced by ANNEX III, there are no claimant data in the database of WATIUM, S.L.

Regarding the claim made by SKYNET LEGAL, we are unaware of the origin of the obtained data, since WATIUM, as already stated, has not communicated the data within the framework of the data processor established in both entities."

To this end, the service contract between both entities is attached, as well as the aforementioned data processor contract, whose signature is subsequent to the information request.

Concerning the origin of the debt incurred with W.S.L and the relationship of the payment claims made, the defendant indicates that, unless there is an error or omission, there are no debt claims recorded in W.S.L's database made against the claimant on behalf of W.S.L.

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On April 20, 2023, a new request for information was sent to the claimant in order to provide a copy of any invoice associated with the supply allegedly contracted fraudulently and information regarding the continuity of debt collection claims by SKYNET at present. In the absence of a response from them, the request was reiterated on May 17, 2023, and was delivered on May 29, 2023, again without receiving any response.

On April 20, 2023, a new request for information was sent to the defendant; among other issues, the contract with the telemarketing service provider, as well as the reason why SKYNET is claiming a debt from the affected party in the name of W.S.L.

Made available in the Single Enabled Electronic Address (DEHÚ), the notification was accepted on April 24, 2023. Having exceeded the response deadline without receiving any written allegations from this Agency, the request was reiterated on May 17, 2023, and this notification was accepted in DEHÚ on May 28, 2023. The defendant submitted their written allegations on June 19, 2023, two weeks after the granted response deadline had passed.

Regarding the reason why SKYNET is claiming a debt from the affected party in the name of W.S.L, it indicates that "The debt originates from unpaid invoices. SKYNET is a provider of WATIUM dedicated to debt collection."

However, this statement is inconsistent with the response to the first request, in which it was stated

that there were no records of the claimant in their database, nor any contracts formalized between W.S.L and the latter.

As for the requested copy of the contract between WATIUM S.L. and the telemarketing service provider that formalized the supply contract on behalf of W.S.L with the claimant dated April 22, 2022, the defendant does not provide it, but instead supplies a customer portfolio sale contract between W.S.L and INSIGNIA GAS, S.L. dated February 22, 2022, which states, regarding personal data, that “the Seller declares compliance with data protection regulations as established by current legislation.” Regarding this statement, W.S.L indicates that “certain customers who originally contracted with INSIGNIA GAS SL did so under the conditions and criteria of INSIGNIA GAS SL without, at that time, WATIUM having any involvement or intervening in their contracting, as the acquisition of the customer in question occurred long before WATIUM purchased the portfolio and, therefore, the customer in question transitioned to having a contract subrogated by WATIUM.” For this purpose, it provides a copy of a contract with the mentioned entity, which, however, is not signed and does not include the indicated customer portfolio.

This new assertion is also inconsistent with what was indicated in the response to the transfer where it was stated that “it has been verified that the contracting was carried out informing that it was taking place with MAS LUZ ENERGIA, a brand marketed by WATIUM.”

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Finally, regarding the company SKYNET LEGAL S.L. for debt management, responsible for processing and sending messages to the defendant, despite having been requested for information, it has not appeared in the Notific@ notification system and is listed as unknown at the postal address specified both in AXESOR and in the contracts provided by the claimant.

FIFTH: According to the report collected from the AXESOR tool, the entity WATIUM, S.L. is a medium-sized company established in 2012, with a business volume of €54,581,760 in 2020.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Obligation breached

The GDPR addresses in its Article 5 the principles governing the processing of personal data, a provision that states:

“1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (<>)

[...]

Paragraph 2 of this same article also establishes that “The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it (<>)”

For its part, Article 6 of the GDPR under the heading “Lawfulness of processing” specifies in paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

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“1. The processing shall only be lawful if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person.
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

In the case at hand, there is no evidence that any of the aforementioned conditions are met to consider the processing of the personal data of the claimant lawful. Such processing consisted, as evidenced by the investigation proceedings, in the execution of an energy supply contract without the consent of the claimant.

This fact is primarily evidenced by the lack of submission, by W.S.L, of the contract formalized between it and the claimant, despite having been requested by this entity on several occasions. In this regard, initially, the responding party claims that it does not have such a contract since it was not provided by the telemarketing service provider. However, it later states in a subsequent document that the data was obtained through a contract with another company where a client portfolio was transferred, without providing the list of those included in that alleged portfolio, as well as the consent of the data subjects for the processing of such transfer.

On the other hand, it must be taken into account that such unlawful processing has resulted in the claimant receiving calls and messages from a company engaged in debt collection, through which various amounts were claimed under the allegedly fraudulent contract.

In this regard, it is also worth recalling that the processing of personal data by the processor must be carried out through a prior contract between it and the data controller, as required by Article 28.3 of the GDPR:

“The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and...”

purpose of processing, the type of personal data and categories of data subjects, and the obligations and rights of the data controller.”

In this case, despite the submission of two documents consisting of the contract between the defendant company and the data processor SKYNET LEGAL SL., as evidenced by the investigative activities, both were signed after the processing of said data, even after the request for such documentation by this entity. Therefore, it follows that the data was transferred and processed by the data processor without the prior agreement required by the aforementioned Article 28.3 of the GDPR.

III

Classification and qualification of the infringement

In accordance with the evidence available in this initiation agreement of the sanctioning procedure and without prejudice to what results from the instruction, it follows that W.S.L has possibly processed the personal data of the claimant party, without any of the legitimate grounds provided for in the aforementioned Article 6 of the GDPR.

Such processing has allegedly consisted of formalizing a supply contract without the prior consent of the claimant party, which has resulted in various invoices being generated for the latter, as well as the collection of such amounts by an entity dedicated, among other purposes, to debt collection management.

The known facts could constitute an infringement, attributable to the defendant party, classified under Article 83.5 of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; [...]”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“b) The processing of personal data without any of the lawful processing conditions established in Article 6 of Regulation (EU) 2016/679.”

Furthermore, as stated in the investigative proceedings and in the absence of documentation that could be submitted during the processing of this procedure, it follows that at the time of the data processing by SKYNET LEGAL S.L., through the request for amounts on behalf of W.S.L., there was no prior contract or legal act between it and the data processor, as required by Article 28.3. Regarding this processing, it is not possible to take into account the contracts submitted by the defendant party in the previous proceedings, as they were signed after the request for them by this entity.

Such known facts could constitute an infringement, attributable to the defendant party, classified under Article 83.4 of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; [...]”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a two-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as serious:

“k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679.”

IV

Proposed sanction

The corrective powers attributed to this Agency as the supervisory authority are outlined in Article 58.2 of the GDPR, paragraphs a) to j).

The provision mentions among them the power to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). Also, the power to order the data controller to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe (Article 58.2.d).

In this case, without prejudice to what results from the instruction, two administrative fines could be imposed on the defendant party in accordance with Article 58.2.i) of the GDPR for the alleged infringement of Article 6.1 of the GDPR and Article 28.3 of the same legal text, respectively.

Article 83 of the GDPR, “General conditions for the imposition of administrative fines,” states in paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 complies in each individual case with the

principles of effectiveness, proportionality, and deterrence.

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The principle of proportionality requires a correlation between the infringement and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR establishes the technique to be followed to achieve this adequacy between the sanction and the infringement committed and provides a list of criteria or factors that must be taken into account to graduate the sanction.

In relation to the facts presented, at this stage of the procedure and without prejudice to the outcome of the investigation, the following factors reflecting a greater unlawfulness of the conduct and/or culpability of the allegedly infringing entity are noted:

In relation to the infringement of Article 6.1 of the GDPR, the following aggravating circumstance is proposed:

- Circumstance of Article 83.2.k) GDPR, in relation to Article 76.2.b) LOPDGDD: The evident link between the business activity of the respondent and the processing of personal data. The respondent's corporate purpose includes, among others, the marketing of electricity. The execution of contracts it enters into with consumers in the development of this activity involves the processing of numerous personal data of its clients or even third parties. The nature of this business activity obliges the data controller to exercise due diligence concerning compliance with the obligations imposed by personal data protection regulations, a diligence that does not seem to have been present in this case. In relation to the infringement of Article 28.3 of the GDPR, the following aggravating circumstance is proposed:

- Circumstance of Article 83.2.a) GDPR: "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm suffered." The presence of this circumstance is evident from the scope of the same, since the processing operation by the data processor without a prior contract with the data controller has involved making calls and sending messages to the complainant in order to claim certain amounts. This fact has caused harm to the complainant that aggravates the infringing conduct.

No mitigating circumstances are noted.

In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, taking into account the total annual global turnover of the previous financial year, as well as the presence of the aforementioned aggravating circumstances, and without prejudice to the outcome of the investigation, it is estimated that the mentioned infringements could be subject to sanction by imposing an administrative fine in the following amounts:

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- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 70,000.00 euros.

- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of 50,000.00 euros.

V

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory

authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In particular, this authority proposes the following measures to be adopted by the respondent W.S.L., without prejudice to the outcome of the investigation of this procedure:

- Considering that no formal contract has been provided with the complainant that proves the legitimacy of the data processing, this entity proposes as a measure to be adopted the periodic verification of the contracts made provided by any telemarketing service provider that conducts contracts on its behalf.
- Regarding the provision of personal data to processors in order to claim amounts from different users, it is proposed as a measure to be adopted, the verification, prior to such provision, that the mentioned data has been obtained lawfully, by checking, where applicable, the formalized contracts. It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against WATIUM, S.L., with NIF B86459260, for the alleged infringement of Article 28 of the GDPR and Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR.

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SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the claim filed by the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 50,000.00 euros (fifty thousand euros)
- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 70,000.00 euros (seventy thousand euros)

FIFTH: TO NOTIFY this agreement to WATIUM, S.L., with NIF B86459260, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 96,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 96,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 72,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

Furthermore, in order to prevent further infringements of the same nature, the acknowledgment of responsibility and the consequent application of the mentioned reduction will imply the acceptance, if applicable, of the measures to be adopted as proposed and indicated by this entity in the present agreement.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (96,000.00 euros or 72,000.00 euros), it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Additionally, it must send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On October 6, 2023, the party being claimed has proceeded to pay the sanction in the amount of 72,000 euros making use of both reductions.

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provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were

confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208578, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER WATIUM, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to WATIUM, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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